



File No.: EXP202316795

RESOLUTION OF PROCEDURE FOR RECOGNITION OF LIABILITY

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 29, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against LOS NIÑOS DE MONTESSORI, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202316795

Sanctioning Procedure No. PS/00527/2023

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on September 27, 2023. The complaint is directed against LOS NIÑOS DE MONTESSORI, S.L. with NIF B88155734 (hereinafter, the respondent).

In the received document, the responsible party for the website

<https://www.montessoritrescantos.com/> is reported for lacking a privacy policy when potentially collecting personal data through a contact form, and for installing non-exempt cookies without informing or obtaining the consent of users.

Along with the notification, two screenshots are provided showing the contact page without a legal privacy notice and the main page of the cited website without a cookie notice.

SECOND: On November 22, 2023, it was noted that the respondent entity offers educational immersion services in the English language, and that in the contact section of the reported website <https://www.montessoritrescantos.com/contacto>, there is a form to be filled out requiring personal data (name, surname, phone number, and email) to be able to contact, make inquiries, and/or reserve a spot, without including a legal notice or section regarding the privacy policy of the responsible entity. It is also verified that the main page does not have a banner or link regarding cookie notice through which users of the browser can provide their consent, and on the same date, a report on cookies is added to the file, which detects that the web address uses a total of 18 cookies.

THIRD: According to the report collected from the AXESOR tool, the entity LOS NIÑOS DE MONTESSORI, S.L. is a microenterprise established in 2018, with a business volume of €313,772 in 2022.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary issues

Without prejudice to the liability that may arise from failing to comply with the obligations regarding the installation of cookies established by Law 34/2002 of July 11, on information society services and

electronic commerce (hereinafter, LSSI) - which, if applicable, should be subject to independent processing - this procedure focuses on determining whether it is appropriate to attribute liability for the alleged non-compliance regarding the lack of a privacy policy on the page.

The GDPR aims to guarantee the right to the protection of personal data of individuals. Article 4.1 of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, a...

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identifier online or one or several elements specific to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that person;".

Article 4.2 of the GDPR defines "processing" as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction."

Finally, Article 4.7 of the GDPR considers the "data controller" to be: "the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the data controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States."

Therefore, in accordance with the above definitions, it is evident that the website

<https://www.montessoritrescantos.com> processes personal data of those individuals who fill out the contact form made available to interested parties both to contact the entity and to reserve a place in the English immersion school it manages, as well as to make an inquiry, since the following personal data is requested: name, email, and phone number. And in turn, there is no doubt that the controller of said website performs at least one operation considered as processing, which is the collection or recording of said data, determining the purposes and means thereof.

There is no doubt, therefore, that the entity being claimed is subject to compliance with the current data protection regulations, which implies, among other things, that it is obliged to provide to the interested parties who fill out the form, at the moment prior to sending the information, the information required in the provisions set out below, which is commonly referred to as the entity's "privacy policy."

For all the above reasons, and without prejudice to what may be deduced from the instruction, LOS NIÑOS DE MONTESORI, S.L is the presumed responsible party to whom this sanctioning procedure must be addressed in accordance with the provisions of Article 70.1 a) of Organic Law 3/2018, of December 5, on the protection of personal data and the guarantee of digital rights (hereinafter, LOPPD):

"Article 70. Responsible parties.

1.

Those subject to the sanctioning regime established in Regulation (EU) 2016/679 and in this organic law are: a) The controllers of the processing. b) The processors of the processing. c) The representatives of the controllers or processors of the processing not established in the territory of the European Union. d) The certification bodies. e) The accredited entities supervising the codes of conduct. (...)"

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Transparency and duty of information in the processing of personal data.

The processing of any personal data must be governed by the principles outlined in Article 5 of the GDPR, among which the so-called Principle of Transparency provided in Article 5.1.a) can be highlighted, which states: "Personal data shall be:

a) Processed lawfully, fairly, and transparently in relation to the data subject ('lawfulness, fairness, and transparency')."

The development of the principle of transparency is specified in a series of information duties that the data controller must provide to each data subject, which are primarily regulated in Articles 12 to 14 of the GDPR. In this regard, Article 12 of the GDPR establishes that "1. The data controller shall take appropriate measures to provide the data subject with all the information referred to in Articles 13 and 14" and contains various rules regarding the "form" in which the information that is mandatory must and can be provided. The content of the information regarding the processing of data that must be provided to the data subject is regulated in the GDPR in Articles 13 and 14, which distinguish two scenarios: that the data is collected from the data subject (Article 13 GDPR) or obtained from another source (Article 14 GDPR).

In particular, the obligation to provide the information contained in Article 13 of the GDPR regarding "Information to be provided when personal data is obtained from the data subject" is applicable to the present case, which establishes:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

- a) The identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49,

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Section 1, second paragraph, reference to adequate or appropriate safeguards and to the means to obtain a copy of these or to the fact that they have been provided.

2. In addition to the information mentioned in Section 1, the data controller shall provide the data subject, at the time when the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be retained or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data

and has been informed of the possible consequences of not providing such data;

f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which they were collected, they shall provide the data subject, prior to that further processing, information on that other purpose and any other relevant information in accordance with Section 2.

4. The provisions of Sections 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

In this regard, Recital 60 of the GDPR adds that "The principles of fair and transparent processing require that the data subject be informed of the existence of the processing operation and its purposes. The data controller must provide the data subject with as much supplementary information as necessary to ensure fair and transparent processing, taking into account the specific circumstances and context in which the personal data are processed. The data subject must also be informed of the existence of profiling and the consequences of such profiling. If the personal data are obtained from the data subjects, they must also be informed whether they are obliged to provide the data and of the consequences of failing to do so."

In light of the documentation in the administrative file, it is evident that the website

<https://www.montessoritrescantos.com> processes personal data of those who fill out the contact form made available to interested parties but does not provide any information regarding the processing of such personal data, as it lacks a privacy policy section that informs about the content established in the aforementioned Article 13 of the GDPR.

Consequently, in accordance with the evidence available at this stage of the initiation agreement of the present sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that this has incurred a violation of Article 13 of the GDPR that has been ongoing since August 23, 2019 (the date of the action taken during the first sanctioning procedure initiated for the same reason).

IV

Classification of the violation of Article 13 of the GDPR

If confirmed, the aforementioned violation of Article 13 of the GDPR could constitute the commission of the violation classified in Article 83(5)(b) of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) The rights of data subjects under Articles 12 to 22;"

For the mere purposes of prescription, Article 72(1)(h) of the LOPDGDD classifies as very serious

"The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law." The limitation period for very serious violations provided for in Organic Law 3/2018 is three years.

V

Proposal for sanction for the violation of Article 13 of the GDPR

The corrective powers of the Spanish Data Protection Agency, as the supervisory authority, are established in Article 58(2) of the GDPR. Among

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they have the authority to impose an administrative fine in accordance with Article 83 of the GDPR - Article 58.2 i) - or the authority to order the data controller or processor to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specific manner and within

a specified timeframe - Article 58.2 d).

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR.

In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent.
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, the compliance with such measures.
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, regarding letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

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2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party could have included the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- a) To have, when not mandatory, a data protection officer.
- b) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

In the present case, considering the facts presented and without prejudice to what results from the instruction of the procedure, it is considered that the initial sanction that would correspond to be imposed is an administrative fine of €4,000.00 (four thousand euros), for the alleged commission of an infringement of Article 13 of the GDPR.

VI

Adoption of corrective measures.

If the infringement is confirmed, it may be agreed to impose on the controller the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

In such a case, in the resolution adopted, this Agency may require the entity being claimed against to demonstrate within 1 month to this body that it has proceeded to introduce on its website (www.montessoritrescantos.com) a banner or link to the “privacy policy,” where all aspects regulated in Article 13 of the GDPR are informed to those interested in completing the contact form on its website. It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to open a further administrative sanctioning procedure.

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Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against LOS NIÑOS DE MONTESSORI, S.L., with NIF B88155734, for the alleged infringement of Article 13 of the GDPR, classified in Article 83.5 of the GDPR:

SECOND: TO APPOINT R.R.R. as the instructor and S.S.S. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claiming party and its documentation, as well as the documents obtained and generated in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be a fine of €4,000, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to LOS NIÑOS DE MONTESSORI, S.L., with NIF B88155734, granting a hearing period of ten working days for them to submit allegations and present the evidence they deem appropriate. In their written allegations, they must provide their NIF and the sanctioning procedure number indicated in the heading of this document.

If no allegations are made within the stipulated period, this agreement may be considered a proposal for resolution, as provided in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the

application of this reduction, the sanction would be established at €3,200, resolving the procedure with the imposition of this sanction.

Similarly, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be established at [Insert the corresponding text for €3,200 and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures. The reduction for the voluntary payment of the sanction is cumulative to the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment...

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of the responsibility is made evident within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were applicable, the amount of the sanction would be set at 2,400 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (3,200 euros or 2,400 euros), you must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of deposit to the General Sub-Directorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the agreement to initiate or, where applicable, from the draft agreement to initiate. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address before this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal can be filed against this act.

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Mar España Martí
Director of the Spanish Agency for Data Protection

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SECOND: By virtue of the written submission dated May 29, 2024, the party being claimed has expressly acknowledged its responsibility regarding the facts referred to in the previously transcribed Agreement to initiate, and its legal qualification, waiving any action or appeal in the administrative route and requesting the application of the provided reduction.

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THIRD: The acknowledgment of responsibility, in the terms exposed, and within the period granted to submit allegations regarding the opening of the procedure, allows for the resolution of the procedure with the imposition of the appropriate sanction.

According to the provisions of section 3 of Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), a reduction of 20% on the amount of the sanction can be applied, as was determined in the Agreement to initiate. In any case, its effectiveness is conditioned upon the renunciation of any action or appeal in the administrative route against the sanction.

FOURTH: In the Agreement to initiate previously transcribed, it was indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations are in compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”. Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Agreement to initiate is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures.”

Finally, the Fourth Additional Provision “Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws” establishes that: “The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws.”

II

Termination of the procedure

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Article 85 of the LPACAP, under the heading “Termination in sanctioning procedures,” provides as follows:

- “1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on LOS NIÑOS DE MONTESSORI, S.L., with NIF B88155734, for an infringement of Article 13 of the GDPR, classified under Article 83.5.b) of the GDPR, a fine of 3,200.00 euros, after applying a 20% reduction for acknowledgment of responsibility, on the initially established amount of 4,000.00 euros. All of this, in accordance with the provisions of Article 85.3, in relation to section 85.1 of the LPACAP. The effectiveness of the aforementioned reduction is conditioned, in any case, on the renunciation of any action or administrative appeal.

SECOND: TO ORDER LOS NIÑOS DE MONTESSORI, S.L. to notify the Agency within 1 month from the date this resolution becomes final and enforceable, of the adoption of the measures described in the legal grounds of the initiation Agreement transcribed in this resolution.

THIRD: TO NOTIFY this resolution to LOS NIÑOS DE MONTESSORI, S.L.

FOURTH: Given that there is an express renunciation of any action or administrative appeal in this procedure, this resolution will be enforceable from its notification. The sanctioned party is warned that they must fulfill the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1 of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making their payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification, being immediately enforceable at that moment, if the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of the LPACAP, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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